

Ross on Crime

A

Attempt

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Attempt

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[1.6600] Definition

In New South Wales, South Australia and the Australian Capital Territory an attempt is said to be an offence. The offence of attempt is not defined. Elsewhere it is.

In the Northern Territory it was held that the Criminal Code s 4 (the predecessor to s 43BF) reflected on the common law: *R v Prior* (1992) 91 NTR 53; [112 FLR 388](#); [65 A Crim R 1 at 658–659](#), 7(Mildren J); *R v Susak* (1999) 105 A Crim R 592 at 595 (Riley J).

Common law (NSW, SA and ACT)

In *R v Donnelly* [\[1970\] NZLR 980](#) (CA) Turner J said (at 990–991):

He who sets out to commit a crime may in the event fall short of the complete commission of that crime for any one of a number of reasons. *First*, he may, of course, simply change his

mind before committing any act sufficiently overt to amount to an attempt. *Second*, he may change his mind but too late to deny that he had got so far as an attempt. *Third*, he may be prevented by some outside agency from doing some act necessary to complete commission of the crime – as when a police officer interrupts him while he is endeavouring to force the window open, but before he has broken into the premises. *Fourth*, he may suffer no such outside interference, but may fail to complete the commission of the crime through ineptitude, inefficiency or insufficient means. The jemmy which he has brought with him may not be strong enough to force the window open. *Fifth*, he may find that what he is proposing to do is after all impossible – not because of insufficiency of means, but because it is for some reason physically not possible, whatever means be adopted. He who walks into a room intending to steal, say a specific diamond ring, and finds that the ring is no longer there but has been removed by the owner to the bank, is thus prevented from committing the crime which he intended, and which, but for the supervening physical impossibility imposed by events he would have committed. *Sixth*, he may without interruption efficiently do every act which he set out to do, but may be saved from criminal liability by the fact that what he has done, contrary to his own belief at the time, does not after all amount in law to a crime.

Approved:

[Haughton v Smith \[1975\] AC 476; \[1973\] 3 All ER 1109; 58 Cr App R 198](#) per Hailsham LC (at 493; 1115; 208–209);

[R v Kristo \(1989\) 39 A Crim R 86 at 95–97 \(SA CCA\)](#);

[R v Barbouttis \(1995\) 37 NSWLR 256; 82 A Crim R 432 at 270–271, 445–446 \(CCA\)](#).

An example included the attempt to procure an act of gross indecency by trying to persuade boys to masturbate in the accused's presence or to engage in intimate sexual behaviour: [R v Ayles \(1993\) 66 A Crim R 302 \(SA CCA\)](#).

[1.6605] Legislation

Cth: Criminal Code s 11.1;

Qld: Criminal Code s 4;

WA: Criminal Code ss 4 and 552;

Tas: Criminal Code s 2;

NT: Criminal Code s 43BF;

NSW: *Crimes Act 1900* s 344A;

Vic: *Crimes Act 1958* s 321N;

SA: *Criminal Law Consolidation Act 1935* s 270A;

ACT: Criminal Code s 44;

NZ: *Crimes Act 1961* ss 17(2), 72 and 311;

Eng: *Criminal Attempts Act 1981*;

Can: Criminal Code s 24.

[1.6610] Mere intention is not an attempt

In *R v Eagleton* (1854) Dears CC 515; 169 ER 826 Parke B said (at 538; 835):

The mere intention to commit a misdemeanour is not criminal. Some act is required, and we do not think that all acts towards committing a misdemeanour are indictable. Acts remotely leading towards the commission of the offence are not to be considered as attempts to commit it, but acts immediately connected with it are.

Applied:

R v Borinelli [1962] SASR 214 at 218 (CCA).

Similarly preparation will not be considered an attempt if not sufficiently proximate to the crime. In *Hope v Brown* [1954] 1 WLR 250; 1 All ER 330 (CCA) a butcher prepared over-priced tickets which he put in a drawer intending to mark the meat. The justices dismissed the charge of attempt. The informant appealed. The appeal was dismissed.

[1.6615] “Last act” theory is not a condition precedent

In *O'Connor v Killian* (1984) 38 SASR 327; 15 A Crim R 353 Prior J said (at 355):

I think the prosecution had proved a sufficiently proximate act by the appellant as to warrant conviction ... The last act theory referred to by Baron Parke in *Eagleton* (1854) Dears CC 515; 169 ER 826 is not a condition precedent to conviction, even though that was proved in that case. The prosecution had to prove something more than mere preparation. It did that

through the admissions made by the appellant herself: cf Lord Edmund Davies in *DPP v Stonehouse* [1978] AC 55; [1977] 2 All ER 909; 65 Cr App R 192 at 84–87 (AC).

[1.6620] The proximity test

In *Davey v Lee* [1968] 1 QB 366; [1967] 2 All ER 423; 51 Cr App R 303 (QBD) Lord Parker CJ adopted a test from *Archbold* (at 371; 425; 306):

It is submitted that the actus reus necessary to constitute an attempt is complete if the prisoner does an act which is a step towards the commission of the specific crime, which is immediately and not merely remotely connected with the commission of it, and the doing of which cannot reasonably be regarded as having any other purpose than the commission of the specific crime.

Applied:

Comer v Bloomfield (1970) 55 Cr App R 305 at 308–309 (CA Cr D).

Approved:

R v Susak (1999) 105 A Crim R 592 at 595 (NT, Riley J).

In *DPP v Stonehouse* [1978] AC 55; [1977] 2 All ER 909; (1977) 65 Cr App R 192 (HL) Lord Diplock said (at 68; 917; 208):

The constituent elements of the inchoate crime of an attempt are a physical act by the offender sufficiently proximate to the complete offence and an intention on the part of the offender to commit the complete offence. Acts that are merely preparatory to the commission of the offence, such as, in the instant case, the taking out of the insurance policies, are not sufficiently proximate to constitute an attempt. They do not indicate a fixed irrevocable intention to go on to commit the complete offence unless involuntarily prevented from doing so.

See also, *Steer v The Queen* [2014] NSWCCA 338; *Santesso v Tasmania* [2016] TASCCA 4.

In *Weggors v Western Australia* [2014] WASCA 57, the Court held that statutory language for an attempt (s 4, Criminal Code (WA) requiring acts to be performed that are more than preparatory to the offence), does not necessarily embody any of the common law tests for when an attempted offence has occurred.

[1.6625] Attempt and impossibility

In *R v Collingridge* (1976) 16 SASR 117 (CCA) Zelling J said (at 140–141):

[A]n accused person cannot be convicted of an attempt if it is impossible as a matter of law to convict him of the completed offence. It is, however, possible to convict him of an attempt where the impossibility is a factual and not a legal one. There is one exception to this rule, and that is where the act which has not been done so that the offence remains uncompleted is itself an essential element in the completed offence, then the accused is not guilty: see the judgment of Gibbs J in *R v Bull* (1974) 131 CLR 203 at 254–255 and a note on “Attempts to Commit a Crime in Circumstances where the Commission of the Crime is Impossible” (1976) 50 ALJ 328 and 329.

Followed:

R v Lee (1990) 1 WAR 411; 47 A Crim R 187;

R v English (1993) 10 WAR 355; 68 A Crim R 96 (CCA) per Scott J (at 371; 111).

In *R v Brady* (2005) 92 SASR 135; 155 A Crim R 230 (CCA) two prisoners had tried to escape but their technique was ineffective and would not have worked. On an appeal against conviction the court examined many authorities. Appeal dismissed. Duggan J, with whom the others agreed, said (at [26]):

It is not the point that adequate means were not available to the appellants. The relevant consideration is that an escape was possible if the necessary equipment had been available, but that the attempt failed because the makeshift implements in the cell were inadequate. This was not a situation in which the appellants were attempting to do something which was not possible whatever the means adopted.

[1.6630] When attempt may not be open

A charge of an alternative of attempt to commit the following offences may not be open in law:

1. Attempt to commit an offence whose element is negligence or recklessness such as involuntary manslaughter;
2. Attempt to aid, abet, counsel or procure;
3. Attempt to commit a crime if there is omission such as concealment, misprision or compounding;
4. Attempt to commit an inchoate crime whose own element is attempt, such as attempt to conspire;
5. Attempt to commit a summary offence.

In *R v Déry* [2006] 2 SCR 669 (SCC) held there is no offence of attempted conspiracy, in Canada at least.

In *R v Bristol Magistrates' Court; Ex parte E* [1998] 1 WLR 390; [1998] 3 All ER 798 Simon Brown LJ said (at 391; 799):

An attempt to commit a summary offence is not in itself an offence.

See also

E Meehan and J Currie, *The Law of Criminal Attempt* (Carswell, London, 2nd ed, 2000).